

House File 952

H-1203

1 Amend House File 952 as follows:

2 1. Page 3, after line 12 by inserting:

3 <Sec. \_\_\_\_\_. NEW SECTION. **8A.311E State purchasing contracts**  
4 **— waiver.**

5 If the director determines that a necessary good or service  
6 is impossible to procure due to a requirement of section  
7 8A.311C or 8A.311D, the director may waive the requirement  
8 to the extent necessary to obtain the good or service. A  
9 state agency requesting a waiver shall, at a minimum, provide  
10 sufficient evidence showing that the state will suffer an  
11 interruption in business operations or other irreparable harm  
12 if the state agency cannot procure the good or service, and  
13 that the state agency has exhausted all reasonable steps to  
14 prevent such harm, including attempting to procure substitute  
15 goods or services. The director may require the submission of  
16 additional evidence at the director's discretion. A waiver  
17 must be as narrow as possible to allow the procurement of the  
18 necessary good or service.>

19 2. By renumbering as necessary.

---

WULF of Black Hawk